

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF J. LEE HILL

I, J. Lee Hill, declare as follows:

1. I am an associate of the law firm Huth Reynolds LLP (“HR LLP”), which has served as counsel of record for Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) since this action was filed.
2. I submit this Declaration in support of Complainant’s Motion to File Under Seal Complainant’s Amended Opening Brief (the “Motion”) filed contemporaneously herewith.¹
3. On December 12, 2024, Complainant sent to Respondents via email a chart listing the OOCL Materials referenced in the Complainant’s Amended Opening Brief (the “OOCL Confidentiality Chart”).
4. On December 19, 2024, Respondents provided Complainant with a completed OOCL Confidentiality Chart.
5. Attached hereto as Exhibit A is a true and correct copy of the completed OOCL Confidentiality Chart.

¹ Unless otherwise indicated, all terms herein take on the same meaning as in the Motion.

6. On January 16, 2025, prior to filing its Amended Opening Brief, Complainant sought confirmation from Respondents regarding their position on the confidentiality designations Respondents indicated in the completed OOCL Confidentiality Chart.

7. Respondents confirmed that their confidentiality designations remained unchanged as reflected in the completed OOCL Confidentiality Chart.

8. To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Executed on January 17, 2025.



J. Lee Hill

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

Lauren B. Wilgus
Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Lauren.Wilgus@BlankRome.com
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: January 17, 2025

/s/ J. Lee Hill

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*